

CHAPTER 6.

An Act to provide, during Twelve Months, for the
Discipline and Regulation of the Army and Air
Force.
[12th April 1922.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of two hundred and fifteen thousand, including those to be employed at the depôts in the United Kingdom for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas under the Air Force (Constitution) Act, 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of thirty-one thousand one hundred and seventy-six, including those employed as aforesaid, but exclusive of the numbers serving as aforesaid, and the provisions of the Air Force Act are due to expire at the same dates as the provisions of the Army Act : 7 & 8 Geo. 5.
c. 51.

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow:

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and twenty-two on the following days:—

- (a) in the United Kingdom, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1922.

Army Act
and Air
Force Act
to be in
force for
specified
times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament (that is to say):—

- (a) Within the United Kingdom, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and twenty-two, to the thirtieth day of April, one thousand nine hundred and twenty-three, both inclusive; and

(b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, one thousand nine hundred and twenty-two, to the thirty-first day of July, one thousand nine hundred and twenty-three, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act or the Air Force Act the prices specified in the Schedule to this Act. Prices in respect of billeting.

AMENDMENTS OF ARMY AND AIR FORCE ACTS.

PART I.—AMENDMENTS OF ARMY ACT.

4. In section forty-four of the Army Act (which relates to the scale of punishment by courts martial) :— Amendment of s. 44.

- (1) At the end of paragraph (f) there shall be inserted the following words—

“or, in the case of an officer whose promotion depends upon length of service, forfeiture of all or any part of his service for the purposes of promotion.”

- (2) The following proviso shall be inserted after proviso (2) :—

“(2A) The Army Council may restore the whole or any part of any lost seniority or forfeited service in the case of an officer who may perform good or faithful service, or who may otherwise be deemed by the Army Council to merit such restoration.”

Amendment
of s. 46A.

5. In subsection (2) of section forty-six A of the Army Act (which relates to the power to deal summarily with charges against officers, and shall hereafter be numbered 47) for paragraph (a) the following shall be substituted :—

“(a) Forfeiture of seniority of rank either in the army or in the corps to which the offender belongs, or in both, or, in the case of an officer whose promotion depends upon length of service, forfeiture of all or any part of his service for the purposes of promotion.”

Amendment
of s. 76.

6. The following paragraph shall be inserted at the end of section seventy-six of the Army Act (which relates to the limit of an enlistment) :—

“Provided that the Army Council in special cases may by order direct that where any boy is enlisted in a particular corps before attaining the age of eighteen, the period of twelve years shall be reckoned from the day on which he attains the age of eighteen years.”

PART II.—AMENDMENT OF AIR FORCE ACT.

Amendment
of s. 76.

7. The following paragraph shall be inserted at the end of section seventy-six of the Air Force Act (which relates to the limit of an enlistment) :—

“Provided that, where any boy is enlisted in the regular air force before attaining the age of eighteen, the period of twelve years shall be reckoned from the day on which he attains the age of eighteen years.”

PART III.—AMENDMENTS OF ARMY ACT APPLICABLE ALSO TO THE AIR FORCE ACT.

Amendment
of s. 87.

8. Subsection (2) of section eighty-seven of the Army Act (which relates to the prolongation of service in certain cases) shall be amended as follows :—

After the words “foreign power” there shall be inserted the words “or while such soldier is on service beyond the seas.”

At the end of the subsection the words “unless at that time a proclamation calling out the army reserve or any part thereof is in force” shall be added.

9. In subsection (8) of section one hundred and ninety of the Army Act (which provides for the definition of the expressions "regular forces" and "His Majesty's regular forces"), for the words "in any part of the world" there shall be substituted the words "in every part of the world, or in any specified part of the world."

Amendment
of s. 190.

10. References in this Part of this Act to the Army Act shall be deemed to include references to the Air Force Act, and those provisions shall, in their application to the air force, have effect subject to any of the general modifications set out in Part I. of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply.

Application
to Air
Force.

SCHEDULE.

Section 3.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where meals furnished.	Tenpence per night for the first soldier and eightpence per night for each additional soldier.
Breakfast as specified in Part I. of the Second Schedule to the Army and Air Force Acts.	Sevenpence each.
Dinner as so specified - - - - -	Eightpence.
Supper as so specified - - - - -	Threepence.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Tenpence per night for the first soldier and eightpence per night for each additional soldier.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	One shilling and ninepence per day.
Stable room without forage - - - - -	Sixpence per day.
Lodging and attendance for officer - - -	Three shillings per night.

Note.—An officer shall pay for his food.